

WEB CIRCULATION ONLY



कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भिकाजी कामा प्लेस, नई दिल्ली-110 066.
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. LC-2(966)2016/RJ/18830

Dated:- 13.10.2016

To

All Addl. CPFCs(Zone),
All Regional PF Commissioners,
Regional Offices/Sub-Regional Offices

13 OCT 2016

Subject : Proper handling of cases before Consumer Forums - regarding

Reference : This office Circular No. LC-9(12)2013/CPFC Ref/Pt/3865
dated 16.5.2014 (available at S.No.118) , Circular No. LC-
2(990)2015/MH/10588 dated 12.06.2015

Sir/Madam,

Please refer to this office circulars referred to above vide which comprehensive guidelines on handling of legal cases were issued.

2. It is observed that inspite of detailed instructions on handling of the Consumer Forum Cases, the performance of field offices in defending cases before Consumer forum is not very encouraging and the offices are not following the directions in true spirit.
3. It is also a matter of serious concern that there is a steep rise in number of consumer forum cases. But, the cases are not being defended properly at the level of District Forums leading to passing of adverse orders by District Forum which are rarely reversed by Appellate Courts and set a bad precedent for other cases. It is pertinent to mention that these cases are mostly related to deficiency in service/claim settlement/ Pension scheme and, therefore, can not be neglected.
4. Needless to say, there is urgent requirement to focus attention on the Consumer Forum cases and to ensure that the department is defended effectively in these cases.
5. Zonal ACCs and RPFC/OICs must review the status of Consumer Forum cases personally atleast twice a month. It should be ensured that proper written statement/Counter Reply is filed in each case describing the relevant provision of Act and Scheme. The Forum should also be apprised of the mandate of the Act and be requested to pass orders as per prescribed provisions.
6. It is reiterated that the above circulars should scrupulously be followed by the field functionaries for meticulous handling of all legal cases in their jurisdiction.

Yours faithfully,

(Dr. S.K. Thakur)

Addl. Central P. F. Commissioner (Legal)